

DELHI DEVELOPMENT AUTHORITY
VIKAS SADAN, INA, NEW DELHI - 110023
(CONVEYANCE DEED DIVISION)

CONVEYANCE DEED

Document No.: 123/1995

Date of Execution: 15th day of January, 1995

Place of Execution: New Delhi

THIS CONVEYANCE DEED is made and executed on this the 15th day of January, One Thousand Nine Hundred and Ninety-Five (15-01-1995) at New Delhi.

BETWEEN

DELHI DEVELOPMENT AUTHORITY (hereinafter referred to as "the DDA" or "the Authority" or "the Grantor", which expression shall, unless excluded by or repugnant to the context, include its successors and assigns), a body corporate constituted under Section 3 of the Delhi Development Act, 1957 (Act No. 61 of 1957), having its Head Office at Vikas Sadan, INA, New Delhi - 110023, represented herein by Shri P.K. Aggarwal, Director (Housing-I), duly authorized vide Office Order No. F.1(9)/93/DHG/DDA dated 10-01-1995,

OF THE FIRST PART

AND

MR. RAJESH KUMAR SHARMA, Son of Late Shri Brij Mohan Sharma, aged about 38 years, Indian National, residing at B-47, Lajpat Nagar-II, New Delhi - 110024, PAN: ABRPS4523K (hereinafter referred to as "the Grantee" or "the Allottee", which expression shall, unless excluded by or repugnant to the context, include his heirs, executors, administrators, legal representatives and assigns),

OF THE SECOND PART

The Grantor and the Grantee are hereinafter collectively referred to as "the Parties" and individually as "a Party."

WHEREAS

A. WHEREAS the Delhi Development Authority is the owner and is seized and possessed of the land comprised in Plot No. 1A, Hauz Khas Enclave, New Delhi - 110016, and has developed the said land under the Hauz Khas Residential Scheme, 1988, sanctioned under Section 12 of the Delhi Development Act, 1957, and has constructed thereupon a residential multi-storeyed apartment building containing multiple self-contained residential flats for allotment to the general public.

B. AND WHEREAS the DDA, in pursuance of its aforesaid residential scheme and in exercise of the powers conferred upon it under Sections 12 and 22 of the Delhi Development Act, 1957 read with the DDA (Disposal of Developed Nazul Land) Rules, 1981, invited applications from eligible persons for allotment of residential flats in the said Hauz Khas Residential Scheme, 1988, and the Grantee, Mr. Rajesh Kumar Sharma, duly applied for the allotment of a residential flat and was selected through the computerized draw of lots conducted by the DDA on 05-12-1989.

C. AND WHEREAS the Delhi Development Authority issued a Demand-cum-Allotment Letter bearing No. F.7(42)/88/HK/DDA dated 12th March 1990 in favour of the Grantee, allotting Flat No. 8, Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi - 110016, admeasuring 1200 sq.ft. (super built-up area) and 950 sq.ft. (carpet area), at a total cost of Rs. 6,85,000/- (Rupees Six Lakhs Eighty-Five Thousand Only) on a leasehold basis for a period of 99 (Ninety-Nine) years, perpetually renewable, subject to the terms and conditions mentioned therein and in accordance with the provisions of the Delhi Development Act, 1957.

D. AND WHEREAS the Grantee has paid the entire cost and consideration of the said residential flat aggregating Rs. 6,85,000/- (Rupees Six Lakhs Eighty-Five Thousand Only) to the DDA, the details of which are as follows: (i) Initial deposit of Rs. 50,000/- vide Demand Draft No. 342156 dated 15-01-1990 drawn on State Bank of India, Parliament Street Branch; (ii) Balance amount of Rs. 6,35,000/- paid in instalments between 01-04-1990 and 30-11-1994, full and final receipts whereof having been duly acknowledged by the Delhi Development Authority vide Receipt No. DDA/HK/1994/R-4278 dated 30-11-1994, and the DDA has no outstanding dues from the Grantee.

E. AND WHEREAS the Grantee has requested the DDA to execute and register a formal Conveyance Deed in his favour in respect of the said residential flat, and the DDA, being satisfied that all terms and conditions of the allotment have been complied with, has agreed to execute this Conveyance Deed in favour of the Grantee.

NOW THIS CONVEYANCE DEED WITNESSETH AS FOLLOWS:

1. That in consideration of the sum of Rs. 6,85,000/- (Rupees Six Lakhs Eighty-Five Thousand Only) already paid by the Grantee to the DDA (the receipt whereof the DDA doth hereby acknowledge), and in further consideration of the covenants and conditions herein contained, the Delhi Development Authority doth hereby grant, convey, transfer, and assign unto the Grantee ALL THAT the residential flat more particularly described in the Schedule of Property hereunder written, together with all rights, title, interest, easements, privileges, and appurtenances whatsoever belonging to or in any way appertaining to the said flat, TO HAVE AND TO HOLD the same unto and to the use of the Grantee on a leasehold basis for a period of Ninety-Nine (99) years commencing from the 12th day of March, 1990, perpetually renewable thereafter, subject to the payment of ground rent as may be fixed by the DDA from time to time.
2. The DDA hereby covenants with the Grantee as follows:
 - (a) That the DDA has full right, power, and authority to grant, convey, and transfer the said residential flat unto the Grantee in the manner aforesaid.
 - (b) That the Grantee shall peacefully and quietly hold, possess, and enjoy the said flat without any interruption, disturbance, claim, or demand whatsoever from the DDA or any person claiming under or through the DDA.
 - (c) That the said residential flat is free from all encumbrances, charges, liens, attachments, and claims of whatsoever nature.
3. The Grantee hereby covenants with the DDA as follows:
 - (a) That the Grantee shall use the said flat exclusively for residential purposes and shall not convert the same for any commercial or other non-residential use without the prior written permission of the Delhi Development Authority.
 - (b) That the Grantee shall not make any structural alterations or additions to the said flat without the prior written approval of the DDA.
 - (c) That the Grantee shall pay the ground rent, maintenance charges, property tax, and all other levies and charges as may be applicable from time to time.

(d) That the Grantee shall not transfer, assign, or part with the possession of the said flat within a period of five years from the date of allotment without the prior written permission of the DDA.

(e) That the Grantee shall abide by all the terms and conditions of the allotment letter and the bye-laws framed by the DDA.

4. It is hereby agreed and declared that this Conveyance Deed is subject to the provisions of the Delhi Development Act, 1957, the Registration Act, 1908, the Indian Stamp Act, 1899, and the Transfer of Property Act, 1882, and the rules and regulations framed thereunder, as amended from time to time.

SCHEDULE OF PROPERTY
(Description of the Residential Flat)

ALL THAT the residential flat being Flat No. 8, situated on the Fourth Floor, in the residential apartment building constructed on Plot No. 1A, Hauz Khas Enclave, within the revenue estate of Village Hauz Khas, in the area of New Delhi Municipal Council (NDMC), in the National Capital Territory of Delhi, New Delhi - 110016, admeasuring 1200 sq.ft. (One Thousand Two Hundred Square Feet) of super built-up area and 950 sq.ft. (Nine Hundred and Fifty Square Feet) of carpet area, and bounded as follows:

On the NORTH by : Common passage / corridor

On the SOUTH by : Flat No. 9, belonging to another DDA allottee

On the EAST by : Open space / balcony overlooking the park

On the WEST by : Common staircase and lift shaft

Together with the undivided proportionate share in the common areas and facilities of the building including but not limited to the staircase, lift, lobby, parking area, water supply installation, and drainage system.

IN WITNESS WHEREOF the Parties hereto have set their respective hands and seals on this Conveyance Deed on the day, month, and year first above written.

GRANTOR / EXECUTANT:

For and on behalf of the Delhi Development Authority

Signature: _____

Name: Shri P.K. Aggarwal

Designation: Director (Housing-I), DDA

Date: 15-01-1995

(Seal of DDA)

GRANTEE:

Signature: _____

Name: Mr. Rajesh Kumar Sharma

S/o Late Shri Brij Mohan Sharma

Date: 15-01-1995

WITNESSES:

1. Signature: _____
Name: Shri Anil Kumar Verma
Address: D-15, Sarojini Nagar, New Delhi - 110023

2. Signature: _____
Name: Smt. Kavita Bhatia
Address: 24/6, Safdarjung Enclave, New Delhi - 110029

REGISTRATION ENDORSEMENT

Registered at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi, in Book No. I, Volume No. 1247, Pages 42 to 58, as Document No. 123 for the year 1995, on this the 18th day of January, 1995.

Presented for registration by Shri P.K. Aggarwal, Director (Housing-I), Delhi Development Authority, Executant, who has been identified by Shri Anil Kumar Verma, Identifying Witness.

Stamp Duty paid: Rs. 41,100/- (Rupees Forty-One Thousand One Hundred Only) vide non-judicial stamp papers purchased from the authorized vendor.

Registration Fee paid: Rs. 6,850/- (Rupees Six Thousand Eight Hundred and Fifty Only) vide Receipt No. SR/HK/1995/0123.

Sd/-
Sub-Registrar, SRO V-A
(Hauz Khas), New Delhi
Date: 18-01-1995